

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,

Plaintiff,

v.

Case No. 26BE-CC00056

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity
as Presiding Commissioner of
Benton County, Missouri,

SCOTT HARMS, in his official capacity as
North Side District Commissioner of
Benton County, Missouri, and

LARRY BERRY, in his official capacity as
South Side District Commissioner of
Benton County, Missouri,

Defendants.

PLAINTIFF'S MOTION FOR TEMPORARY RESTRAINING ORDER

COMES NOW Plaintiff NSI 6, LLC, by and through its undersigned counsel, and pursuant to Missouri Rule of Civil Procedure 92.02(a) moves this Court for a temporary restraining order prohibiting Defendants from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 “Order and Ordinance of County Commission of Benton County, Missouri—An Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence” (the “Order”) against Plaintiff, its Property, or the Project. In support of its Motion, Plaintiff states and avers as follows:

1. Plaintiff is the contract purchaser by assignment of real property in unincorporated Benton County, Missouri, identified as Parcel Number 142009000001006000 (the “Property”), on which Plaintiff intends to construct and operate a data center (the “Project”).

2. On or about August 10, 2026, Defendants adopted the Order. The Order became effective upon passage and approval and applies throughout unincorporated Benton County.

3. The Order prohibits construction, conversion, establishment, commencement of new operations, or expansion of any "Data Center," as defined by the Order, which definition would include Plaintiff's Project. It also prohibits the issuance of permits related to those activities and extends to broadly defined supporting and ancillary facilities and infrastructure.

4. The Order remains in effect for six months after adoption, subject to a further extension of up to six months by additional order. The Order purports to authorize County enforcement by various mechanisms, including injunctive relief, cease-and-desist orders, recovery of County costs and reasonable attorneys' fees, and other remedies.

5. Before Defendants adopted the Order, Plaintiff was actively developing the Project. Plaintiff coordinated with utilities and local stakeholders; entered an agreement to acquire the Project site; retained customary pre-development professionals; made material arrangements concerning utilities, financing, site preparation, construction, and equipment; and anticipated closing and beginning initial site work.

6. The Order presently prevents, delays, or conditions Plaintiff's ability to advance the Project. Unless restrained, Defendants may withhold permits, issue directives, pursue enforcement remedies, or otherwise prevent Plaintiff from proceeding with the Project.

7. Pursuant to Rule 92.02(a), a temporary restraining order may issue when the moving party demonstrates that immediate and irreparable injury, loss, or damage will result without relief. The Rule requires a verified petition or affidavit reciting specific facts that support the showing of immediate and irreparable injury. Plaintiff's verified Petition provides the requisite factual support.

8. Plaintiff has shown immediate and irreparable injury and the lack of an adequate remedy at law, in that:

a. The Order is effective now, applies directly to the Property and the Project, and authorizes Defendants to halt or burden Plaintiff's development through permit denials, directives, and enforcement measures.

b. Plaintiff has alleged concrete, ongoing injury, specifically: interruption and delay of the Project; impairment of contractual, financing, utility, construction, and equipment arrangements; interference with the use and development of the Property; and uncertainty as to whether Plaintiff may proceed without enforcement exposure.

9. The foregoing injuries are immediate and cannot be fully remedied through a later damages award. Damages would not resolve the continuing uncertainty over the validity of the Order or restore lost development time, disrupted project sequencing, impaired contractual arrangements, and interference with Plaintiff's property-development rights. Additionally, any claim for damages may be limited or foreclosed by the doctrines of sovereign and official immunity. The requested temporary restraining order is therefore necessary to prevent injury while the Court considers Plaintiff's request for preliminary and permanent injunctive relief.

10. Plaintiff has a substantial likelihood of success on the merits. Specifically:

a. "Counties 'have no inherent powers but are confined to those expressly delegated by the sovereign and to those powers necessarily implied in the authority to carry out delegated powers.'" *Christian Co. v. Edward D. Jones & Co., L.P.*, 200 S.W.3d 524, 527 (Mo. banc 2006) (citation omitted). "[W]hen a [county commission] steps out of these boundaries...their acts are void." *Borron v. Farrenkopf*, 5 S.W.3d 618, 620 (Mo. Ct. App. W.D. 1999). "Any fair, reasonable doubt concerning the existence of power is

resolved by the courts against the [county] and the power is denied.” *Browning-Ferris Indus. of Kansas City, Inc. v. Dance*, 671 S.W.2d 801, 808 (Mo. Ct. App. W.D. 1984).

b. Plaintiff’s verified Petition states a substantial claim that the Order is, in substance and effect, a zoning enactment. Whether an ordinance is zoning depends on its primary purpose, not merely its caption or asserted health-and-welfare rationale. Missouri courts consider: (1) the ordinance’s stated purpose; (2) whether its provisions actually regulate public health and safety or instead direct the development of real estate; and (3) whether it effectively disallows a land use that was previously permitted. *F.W. Disposal South, LLC v. St. Louis Cnty.*, 168 S.W.3d 607, 613 (Mo. Ct. App. E.D. 2005). The facts alleged satisfy those considerations. Rather than establish operating standards directed to a demonstrated health or safety condition, the Order prohibits the construction, establishment, operation, and expansion of a defined category of facilities and their supporting infrastructure throughout unincorporated Benton County. It further prevents the issuance of permits for that use. Before the Order, data-center development was not prohibited by any Benton County zoning plan, zoning ordinance, or zoning code. Thus, the Order disallows a previously permitted land use and functions as a zoning enactment.

c. “The exercise of the right to control the use of real property by political entities (which in our modern world and in legal parlance is ‘zoning’) is basically an exercise of police power which initially rests solely in the sovereign.” *Platte County v. Chipman*, 512 S.W.2d 199, 202 (Mo. Ct. App. 1974). “Such power is not enjoyed by lesser governing bodies, such as, counties and municipalities, in the absence of specific grant or delegation to such bodies by the sovereign.” *Id.* The Supreme Court of Missouri has held that a temporary land-use restriction adopted to preserve the status quo while

local officials study and prepare permanent zoning is still zoning and must comply with the applicable enabling act's mandatory requirements. *State ex rel. Kramer v. Schwartz*, 366 Mo. 932, 941-42 (Mo. 1935). The County cannot avoid those requirements by labeling the restriction a temporary moratorium or invoking the practical need to study potential future development.

d. Plaintiff alleges Benton County has not adopted county planning, county zoning, or a county zoning code under the applicable Missouri enabling statutes. The Petition therefore establishes a substantial likelihood that the County lacked authority to adopt and enforce a countywide, use-based moratorium that functions as zoning.

e. Alternatively, even if MO. REV. STAT. §§ 49.650 or 192.300 confer authority over some of the matters the County invokes in its Order, the Order exceeds their limits. MO. REV. STAT. § 49.650 authorizes a non-charter county to legislate in specified fields, including actual disaster-related emergency management, nuisance abatement, stormwater control, and economic development for job creation. However, the Order is not tied to an actual qualifying disaster, an existing nuisance, a storm-water-control measure, or economic development undertaken to promote job creation. Rather, the asserted purpose is to study possible future impacts and consider future regulation.

f. Nor does Section 192.300 supply general authority to prohibit a category of land use based on asserted, potential health impacts. The statute authorizes counties to enact measures that both enhance public health and prevent the entrance of infectious, contagious, communicable, or dangerous diseases. *City of Olivette, Mo. v. St. Louis County, Mo.*, 507 S.W.3d 637, 642-46 (Mo. Ct. App. E.D. 2017). A generalized public-welfare rationale cannot expand that limited statutory grant. Here, the Order prohibits

data centers while the County studies potential noise, air-emissions, water-quality, utility, and related effects. The Order alleges no facts establishing that Plaintiff's Project creates a present disease-related condition, and the Order does not regulate project operations through standards tied to disease prevention.

g. In light of the foregoing, Plaintiff has established a substantial likelihood that the Order is void and unenforceable as applied to Plaintiff, the Property, and the Project.

11. Plaintiff faces immediate project-specific harm if Defendants enforce an allegedly void Order. By contrast, the requested temporary restraining order is narrow. It does not invalidate the Order at this preliminary stage and does not restrain Defendants from exercising lawful authority unrelated to the Order. It merely preserves Plaintiff's ability to proceed free from enforcement of the challenged Order until the Court can promptly hear and decide Plaintiff's request for a preliminary injunction. The public interest favors maintaining the limits the General Assembly placed on county authority and preventing enforcement of an ordinance that Plaintiff has shown is likely unlawful. The public interest also favors prompt judicial resolution of a currently effective enactment that directly restricts private-property development.

12. Plaintiff acknowledges the bond requirement of Rule 92.02(d) and requests that the Court set bond in an amount the Court finds sufficient. Plaintiff is prepared to execute a bond with sufficient surety, or deposit cash with the Court, in the amount ordered.

13. Plaintiff requests that the temporary restraining order remain in effect for fifteen days after entry, unless sooner dissolved or modified by the Court, and that the Court schedule an expedited hearing on Plaintiff's application for preliminary injunction within that period or as otherwise ordered.

14. For the reasons set forth in this Motion and Plaintiff's verified Petition, Plaintiff respectfully requests this Court issue its Order:

- a. Restraining and enjoining Defendants and their officers, agents, servants, employees, attorneys, and persons in active concert or participation therewith, from enforcing, applying, implementing, or threatening to enforce the August 10, 2026 Order against Plaintiff NSI 6, LLC, Parcel Number 142009000001006000, or Plaintiff's proposed data-center project on that parcel; and
- b. Setting this matter for a preliminary injunction hearing at the earliest practicable date.

WHEREFORE, Plaintiff NSI 6, LLC prays this Court enter its temporary restraining order as prayed for above, for a period of fifteen days, to set Plaintiff's request for preliminary injunction for expedited hearing; and for such other and further relief as the Court deems just and proper in the premises.

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